

STATE OF OKLAHOMA

1st Session of the 60th Legislature (2025)

HOUSE BILL 2189

By: Blancett

AS INTRODUCED

An Act relating to housing; defining terms; creating the Oklahoma Workforce Housing Commission; providing for membership; stating quorum; providing for qualifications for Commission members; stating appointment terms; allowing for certain reimbursement; subjecting Commission to Oklahoma Open Meeting Act; stating purpose; providing for promulgation of rules by the Oklahoma Housing Finance Agency; authorizing the Agency to implement certain reports and plans for expansion of affordable housing; requiring distribution and recommendations from Agency to the Governor and Legislature; creating the Oklahoma Workforce Housing Commission Revolving Fund; stating purpose; establishing funding procedures; providing for codification; and providing an effective date.

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. NEW LAW A new section of law to be codified in the Oklahoma Statutes as Section 2904 of Title 74, unless there is created a duplication in numbering, reads as follows:

As used in this act:

1. "Extremely low-income household" means a household that has an income not in excess of thirty percent (30%) of the area median

1 income, adjusted for the size of the household, as determined by the  
2 United States Department of Housing and Urban Development;

3 2. "Very low-income household" means a household that has an  
4 income of more than thirty percent (30%) of the area median income  
5 but no more than fifty percent (50%) of the area median income,  
6 adjusted for the size of the household, as determined by the United  
7 States Department of Housing and Urban Development;

8 3. "Low-income household" means a household that has an income  
9 of more than fifty percent (50%) of the area median income but no  
10 more than eighty percent (80%) of the area median income, adjusted  
11 for the size of the household, as determined by the United States  
12 Department of Housing and Urban Development;

13 4. "Moderate-income household" means a household that has an  
14 income of more than eighty percent (80%) of the area median income  
15 but no more than one hundred twenty percent (120%) of the area  
16 median income, adjusted for the size of the household, as determined  
17 by the United States Department of Housing and Urban Development;  
18 and

19 5. "Middle-income household" means a household that has an  
20 income of more than one hundred twenty percent (120%) of the area  
21 median income but no more than one hundred sixty percent (160%) of  
22 the area median income, adjusted for the size of the household, as  
23 determined by the United States Department of Housing and Urban  
24 Development.

1       SECTION 2.       NEW LAW       A new section of law to be codified  
2 in the Oklahoma Statutes as Section 2904.1 of Title 74, unless there  
3 is created a duplication in numbering, reads as follows:

4       A. There is hereby created until December 30, 2034, the  
5 Oklahoma Workforce Housing Commission. The Commission shall be  
6 composed of fifteen (15) members. The members shall serve as  
7 follows:

8       1. Five members shall be appointed by the Governor:

9           a. one shall be a person living in an urban area with a  
10           population more than one hundred thousand (100,000)  
11           persons according to the latest Federal Decennial  
12           Census,

13          b. one shall be a person living in a rural community in a  
14           county with a population less than seventy-five  
15           thousand (75,000) persons according to the latest  
16           Federal Decennial Census,

17          c. one shall be an official serving in a city, town, or  
18           political subdivision in a county with a population  
19           less than seventy-five thousand (75,000) persons  
20           according to the latest Federal Decennial Census,

21          d. one shall represent an organization that assists  
22           special populations, including, but not limited to,  
23           the elderly, the disabled, veterans, and children  
24

1           transitioning out of foster care, in obtaining  
2           affordable housing, and

3           e.    one shall represent an Oklahoma rural housing  
4           authority;

5           2.   Five members shall be appointed by the President Pro Tempore  
6 of the Senate:

7           a.    one shall be a Senator from the majority party who  
8           shall serve as co-chair of the Commission,

9           b.    one shall be a Senator from the minority party who  
10          shall serve as co-vice chair of the Commission,

11          c.    one shall represent a low-income and moderate-to-low-  
12          income population-serving financial institution or a  
13          community development financial institution, as  
14          defined by the Federal Reserve,

15          d.    one shall be an official serving in a municipality  
16          with a population more than one hundred thousand  
17          (100,000) persons according to the latest Federal  
18          Decennial Census, and

19          e.    one shall represent an urban housing authority;

20          3.   Five members shall be appointed by the Speaker of the House  
21 of Representatives:

22          a.    one shall be a Representative from the majority party  
23          who shall serve as co-chair of the Commission,

- b. one shall be a Representative from the minority party who shall serve as co-vice chair of the Commission,
- c. one shall represent a federally recognized tribe in Oklahoma that provides affordable housing in rural areas,
- d. one shall be a representative from a community housing development organization, as determined by the United States Department of Housing and Urban Development, and
- e. one shall represent a not-for-profit organization that serves low-income Oklahomans experiencing difficulty in obtaining affordable housing; and

4. The following shall be ex officio members:

- a. one shall be a representative from the Oklahoma Department of Commerce representing community development,
- b. one shall be an Oklahoma representative of the United States Department of Agriculture, and
- c. the Executive Director of the Oklahoma Housing Finance Agency, or his or her designee.

B. For the initial appointments of members to the Commission, each appointment shall be for a two-year term. Thereafter, the terms of the Commission shall be for three (3) years.

1 C. No member of the Commission shall receive a salary or  
2 reimbursement for duties performed as a member of the Commission;  
3 however, members may be eligible to receive travel reimbursement as  
4 provided in the State Travel Reimbursement Act.

5 D. The meetings of the Commission shall be subject to the  
6 Oklahoma Open Meeting Act.

7 E. The Commission shall utilize the resources available to  
8 address the needs of extremely low-income households, very low-  
9 income households, low-income households, moderate-income  
10 households, and middle-income households in order to promote a  
11 condition in which suitable housing is available to as many persons  
12 as possible pursuant to rules promulgated by the Oklahoma Housing  
13 Finance Agency pursuant to Section 3 of this act.

14 SECTION 3. NEW LAW A new section of law to be codified  
15 in the Oklahoma Statutes as Section 2904.2 of Title 74, unless there  
16 is created a duplication in numbering, reads as follows:

17 The Oklahoma Housing Finance Agency shall promulgate rules  
18 relating to:

19 1. An initial comprehensive Oklahoma workforce housing  
20 environmental scan and needs assessment;

21 2. A comprehensive Oklahoma affordable housing annual report  
22 and action plan to be submitted electronically to the Governor and  
23 the Legislature;

1        3. A state plan for long-term expansion of workforce and  
2 affordable housing across the state;

3        4. An update on the implementation and outcomes of the  
4 investment in the Oklahoma Housing Stability Program created in  
5 Section 2903 et seq. of Title 74 of the Oklahoma Statutes;

6        5. An evaluation to make recommendations to the Legislature on  
7 policies and incentives to increase the development, inventory, and  
8 diversification of affordable housing; and

9        6. Any other rules necessary to carry out the purpose and  
10 mission of the Oklahoma Workforce Housing Commission pursuant to  
11 Section 2 of this act.

12        SECTION 4.        NEW LAW        A new section of law to be codified  
13 in the Oklahoma Statutes as Section 2904.3 of Title 74, unless there  
14 is created a duplication in numbering, reads as follows:

15        A. There is hereby created in the State Treasury a revolving  
16 fund to be designated as the "Oklahoma Workforce Housing Commission  
17 Revolving Fund", which shall consist of all monies appropriated,  
18 transferred, or otherwise designated to the fund by law. The  
19 revolving fund shall be a continuing fund, not subject to fiscal  
20 year limitations, and shall be under the administration of the  
21 Oklahoma Workforce Housing Commission and shall be budgeted and  
22 expended in accordance with the provisions of subsection B of this  
23 section for the purpose of improving the stock and affordability of  
24 Oklahoma housing.

1       B. No funds shall be budgeted or expended from the Oklahoma  
2 Workforce Housing Commission Revolving Fund prior to July 1, 2025,  
3 or prior to the approval by the Legislature of promulgated permanent  
4 rules by the Commission pursuant to the provisions of the  
5 Administrative Procedures Act.

6       SECTION 5. This act shall become effective November 1, 2025.  
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